

**ORDER SHEET**  
**LAHORE HIGH COURT**  
**RAWALPINDI BENCH RAWALPINDI**  
**JUDICIAL DEPARTMENT**

**C.M. No.1969 of 2023**  
**In**  
**Writ Petition No.3278 of 2019**

Fayaz Ahmed Tariq  
**Versus**  
Member Board of Revenue Punjab Lahore and 3 others

| S.No. of order/<br>Proceeding | Date of order/<br>proceeding | Order with signature of Judge and that of parties or counsel,<br>where necessary |
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| 23.02.2026 | Mr. M. Mudasir Munir Paracha, Advocate for the applicant.<br>Ms. Rahat Farooq Raja, Assistant Advocate General for Punjab (respondents No.1 & 2).<br>Mr. Muhammad Altaf Awan, Advocate for respondents No.3 & 4. |
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This application is in terms of Section 12(2) of the Code of Civil Procedure (V of 1908) (hereinafter referred to as “C.P.C.”) seeking annulment of order dated 28<sup>th</sup> February, 2023, resulting into withdrawal of the writ petition on the statement of counsel of the applicant. The applicant though has canvassed multiple grounds in his application but the main ground is that on the date of withdrawal of the writ petition, the counsel of the applicant did not inform him and he withdrew the writ petition without his knowledge and consent, so as to extend undue benefit to private respondents.

2. The application is resisted by private respondents, who submitted their reply wherein they controverted the grounds agitated in the application. From the respective stances of the parties, ***the only moot point which emerges for the consideration of this Court is related to the authority/competency of the counsel/advocate to withdraw proceedings on behalf of his client.***

3. I have heard learned counsel for the applicant as well as private respondents and learned Law Officer at considerable length and also perused the record.

4. It is an admitted fact that the applicant engaged Mr. Arif Majeed, Advocate as his counsel for filing the constitutional petition and for the said propose, he executed a power of attorney in favour of the above-named counsel. It is also not disputed by the applicant that he appointed Mr. Arif Majeed, Advocate as his counsel but he is challenging the authority of the counsel to make statement on his behalf resulting into withdrawal of the constitutional petition; on the ground that it was done without his consent and without any authority.

5. There is no cavil to the proposition that an attorney or even a counsel cannot proceed beyond the authority delegated to him in terms of the deed of attorney. Any statement or concession made by the counsel on behalf of his client not covered under the power of attorney would not be binding at all upon his client. To this effect, reference can be made to FALAK SHER and others versus HASHMAT BIBI and others (PLD 2025 Lahore 414). The relevant extract from the same is reproduced below :-

“26. Valuable rights of the parties are involved in the lis, therefore, while deciding the case on the basis of compromise, the Court should apply maximum care and caution to ascertain that whether the parties are agreed to the statement of compromise given by their counsel.

27. In the present case, the petitioners engaged Mirza Atta Ullah Qamar Advocate to pursue their case diligently and efficiently. They never authorized him to make any statement of compromise or to get the suit decreed on the basis of compromise. Neither any authority through *Vakalatnama* was given to him to make compromise with the opposite party or to get the suit decreed on the basis of compromise, therefore, the statement made by the petitioners' counsel is not binding upon them.”

Guidance to the above effect can also be sought from ABDUL SHAKOOR and others versus HAROON and others (2008 SCMR 896). The relevant excerpt is reproduced below:-

“7. From perusal of record it revealed that in compromise application filed by appellants deceased Haji Abdul Latif was not party and the compromise application was signed by his son as such his legal heirs cannot be deemed to be bound by

such compromise. Though on the Vakalatnama given to Mr. A.P.F. Fances, Advocate it was endorsed that "we further authorize our advocate to compromise the suit and enter into any settlement arrived at by the parties". Though learned counsel appearing on behalf of respondents was authorized to compromise the suit on their behalf but this authority was neither absolute nor unqualified. In fact it was conditioned with a settlement arrived at by the parties. The counsel as such could not be deemed to be authorized to enter into compromise in relation to the suit without any settlement having been arrived at between the parties themselves. The power to compound or settle the matter is vested with the parties and counsel acts according to the instructions given to him by the party. He may enter into compromise only where the Vakalatnama empowers him to do so specifically and cannot do so at his own."

6. Before proceeding further, it would not be out of context to reiterate that the scope and limit of the authority of the counsel to act on behalf of his client mainly ensues from the power of attorney so executed. For ready reference and convenience, contents of power of attorney executed by the applicant in favour of Mr. Arif Majeed, Advocate is reproduced below:-

"بدیں شرط وکیل مقرر کیا ہے کہ میں ہر پیشی پر خود یا بذریعہ مختار خاص رو برو عدالت حاضر ہوتا رہوں گا اور بوقت پکارے جانے وکیل صاحب موصوف کو اطلاع دے کر حاضر کروں گا۔ اگر کسی پیشی پر مظہر حاضر نہ ہوا اور موصوف صدر مقام کچہری کے علاوہ کسی اور جگہ یا کچہری کے مقررہ اوقات سے پہلے یا بروز تعطیل بیروی کر سکے مجاز نہ ہوں گے اگر مقدمہ کچہری کے کسی اور جگہ سماعت ہونے پر یا بروز کچہری کے اوقات کے آگے یا پیچھے ہونے پر مظہر کو کوئی نقصان پہنچے تو ذمہ دار یا اس کے واسطے کسی معاوضہ ادا کرنے مختار نامہ واپس کرنے کے بھی صاحب موصوف ذمہ دار نہ ہوں گے۔ مجھے کل ساختہ پر داخۃ صاحب مثل کردہ ذات خود منظور قبول ہو گا اور صاحب موصوف کو عرضی دعویٰ اور درخواست اجراء ڈگری و نظر ثانی اپیل نگرانی دائر کرنے اور رسید دینے اور داخل کرنے کا ہر قسم کا بیان دینے اور سپرد ثالثی و راضہ نامہ، فیصلہ بر خلاف کرنے و اقبال دعویٰ کا اختیار ہو گا اور بصورت اپیل و بشرط ادائیگی علیحدہ پیر دی مختار نامہ کرنے کا مجاز ہو گا اور بصورت ضرورت اپیل یا اپیل کے واسطے کسی دوسرے وکیل یا بیرسٹر کو بجائے اپنے ہمراہ مقرر کریں اور ایسے مشیر قانونی کو بھی اس امر میں وہی اختیارات حاصل ہوں گے جیسے صاف موصوف کو پوری فیس تاریخ پیشی سے پہلے ادا نہ کروں گا تو صاف کو پورا اختیار ہو گا کہ مقدمہ کی بیروی نہ کریں اور ایسی حالت میں میرا مطالبہ صاحب موصوف کے برخلاف نہیں ہو گا۔ لہذا مختار نامہ لکھا دیا ہے کہ سندر ہے۔"

(Underlining supplied for emphasis)

From the perusal of the power of attorney, there remains no cavil that Mr. Arif Majeed, Advocate was vested with the

authority to record his statement even concessional on behalf of the applicant.

7. Order III of the **C.P.C.** deals with the manner of appearance by a person or his recognized agent or pleader in the proceedings before the court and any such appearance, application or act in or to any court, required or authorized by law to be made or done by a party in such court, may, except where otherwise expressly provided by any law for the time being in force, be made or done by the party in person, or by his recognized agent or by a pleader on his behalf. The appointment of pleader is governed by Rule 4 of Order III of the **C.P.C.** which reads as under :-

**“4. Appointment of pleader.—**(1) No pleader shall act for any person in any Court, unless he has been appointed for the purpose by such person by a document in writing signed by such person or by his recognized agent or by some other person duly authorized by or under a power-of-attorney to make such appointment.

(2) Every such appointment shall be filed in Court and shall be deemed to be in force until determined with the leave of the Court by a writing signed by the client or the pleader, as the case may be, and filed in Court or until the client or the pleader dies, or until all proceedings in the suit are ended so far as regards the client.

(3) For the purposes of sub-rule (2) an application of review of judgment, an application under S. 144 or S. 152 of this Code, any appeal from any decree or order in the suit and any application or act, for the purpose of obtaining copies of documents or return of documents produced or filed in the suit or of obtaining refund of monies paid into the Court in connection with the suit shall be deemed to be proceedings in the suit.

(4) -----

(5) -----

(a) -----

(b) -----

(c) -----”

It is manifestly clear from the above that authority of a pleader duly appointed by a person(s) to act on his/her behalf in a court shall be deemed to be in force until determined with the leave of the Court by a writing signed by the client(s) or the pleader, as the case may be, and filed in Court or until the client(s) or the pleader dies, or until all proceedings in the suit are ended so far as regards the client(s). In the above backdrop, it can safely be inferred that

stance of the applicant that statement was recorded by his counsel without any authority, loses its efficacy and is highly untenable.

8. A party is always bound by the statement of his counsel unless something is contrary in the power of attorney placing restriction on the authority of the counsel to compromise or abandon the claim. There is logic behind this principle of law because if no credibility is extended to the statement of counsel, duly authorized by the party to record any statement on his behalf, it will erode the sanctity attached to the judicial proceedings. In the case of HASSAN AKHTAR and others versus AZHAR HAMEED and others (PLD 2010 Supreme Court 657) the Supreme Court of Pakistan, while dilating upon similar proposition held as under :-

“13. It is by now well-settled that an Advocate has authority to make statement on behalf of his client, which is binding upon the client, unless there is any thing contrary in the Vakalatnama putting restriction on the authority of the Advocate to compromise or abandon claim on behalf of the client. The Advocate’s power in the conduct of a suit allows him to abandon the issue, which in his discretion, advisable in the general interest of his client.”

Reference to the above effect can also be made to the case of AFZAL and others versus ABDUL GHANI (2005 SCMR 946).

9. The case of BASHARAT ALI and another versus MUHAMMAD ARIF and others (PLD 2023 Lahore 699) is also of great import in this respect wherein it was held as under :-

“3. Engagement of counsel namely Hasnain Sadiq Sahi, Advocate and conducting of proceedings by him on behalf of the respondents, under Order III, Rule 1, Code of Civil Procedure, 1908, is admitted one. The respondents have appointed the said learned Advocate as their counsel for conducting of suit on their behalf and signed the power of attorney, which authorizes the said learned Advocate to conduct the suit on their behalf including recording of any kind of statement. Record reveals that the statement was recorded on 09.01.2019 on the application of the learned counsel and one of the plaintiffs/respondents namely Muhammad Akram and after recording statement, the case was ordered to be produced on the date already fixed i.e. 10.01.2019, when order with regards to withdrawal of the suit was passed. By signing Wakalatnama all the powers including withdrawal of suit or to take any step and conduct proceedings have been delegated upon the counsel. In Fateh Khan v. Manzoor and 5 others (PLD 1993 Lahore 76), this Court held:-

*'It is inconceivable that elements of fraud and misrepresentation may anywise be involved in the exercise of lawful authority conferred on a counsel by means of Wakalatnama. This appointment is made as per the contemplation of Rule 1 of Order III, C.P.C. and is essentially an authority conferred on an agent, exercisable under the ordinary rules governing the relationship of Principal and Agent, in quite a subtle and refined form, exercisable in the field determined by the terms of Wakalatnama itself. Effectiveness of such delegated authorisation and the use thereof stand provided for by section 2 of the Powers of Attorney Act (VII of 1882) as also in Chapter X of the Contract Act (IX of 1872). Authority to withdraw or compromise a, litigation has been held to also be inherent in the engagement of a counsel.'*

Further reliance is placed on Noor Muhammad and others v. Muhammad Siddique and others (1994 SCMR 1248) wherein the Apex Court of country has invariably held that:-

*'It will be seen that the terms of Vakalatnama amply demonstrate that the counsel was empowered to take any step and conduct proceedings in the suit as considered proper by him, and that the same were acceptable to the respondents, who put their signatures on the Deed in token of their approval.'*

A party is always bound by the statement of his counsel unless there is anything contrary in the power of attorney places restriction on the authority, delegated upon the counsel, to compromise or abandon the claim on behalf of his client(s). Reliance is placed on Hassan Akhtar and others v. Azhar Hameed and others (PLD 2010 Supreme Court 657) and Afzal and others v. Abdul Ghani (2005 SCMR 946). In Hassan Akhtar case ibid, the Hon'ble Supreme Court has held:--

*'13. It is by now well-settled that an Advocate has authority to make statement on behalf of his client, which is binding upon the client, unless there is any thing contrary in the Vakalatnama putting restriction on the authority of the Advocate to compromise or abandon claim on behalf of the client. The Advocate's power in the conduct of a suit allows him to abandon the issue, which in his discretion, advisable in the general interest of his client.'*

Reliance to the above effect can also be placed on MUHAMMAD EJAZ and 18 others versus NOOR KHAN and 3 others (2018 CLC 75).

10. In a latest judgment in the case of MUHAMMAD EJAZ versus JUDGE FAMILY COURT, HAFIZABAD and others (2025 SCMR 558), the Supreme Court of Pakistan, ruled as under :-

“3. We have heard learned counsel for the parties and have gone through the record as well as impugned judgments. Though the petitioner sought setting aside of ex parte decree by filing an application under sub-section (6) of Section 9, Family Courts Act, 1964 but later on, he withdrew the same 02.04.2022, meaning thereby he acquiesced of the decree and waived off his right to further agitate it. So far as the filing of subsequently application for recalling of the above said order, as purportedly, no instructions for withdrawing the above said application for setting aside ex parte decree/proceedings to the

counsel, were conveyed is concerned, suffice it to say that the said order was passed after the statement of the duly engaged counsel of the petitioner because engagement of the said counsel under Order III, Rule 1, Code of Civil Procedure, 1908, is admitted one (even the counsel, who withdrew the application, also instituted the suit for cancellation of entries in column No. 15 of the Nikahnama, which means the petitioner has confidence and trust upon his counsel); therefore, the petitioner cannot take a summersault as the act of duly engaged counsel is considered as that of the person, who engages him/her and the petitioner is bound by the acts of his counsel. By signing a Wakalatnama all the powers including withdrawal of suit or to take any step and conduct proceedings is delegated upon the counsel. Lahore High Court in a judgment held:-

*'It is inconceivable that elements of fraud and misrepresentation may anyway be involved in the exercise of lawful authority conferred on a counsel by means of Wakalatnama. This appointment is made as per the contemplation of Rule 1 of Order III, C.P.C. and is essentially an authority conferred on an agent, exercisable under the ordinary rules governing the relationship of Principal and Agent, in quite a subtle and refined form, exercisable in the field determined by the terms of Wakalatnama itself. Effectiveness of such delegated authorisation and the use thereof stand provided for by section 2 of the Powers of Attorney Act (VII of 1882) as also in Chapter X of the Contract Act (IX of 1872). Authority to withdraw or compromise a, litigation has been held to also be inherent in the engagement of a counsel.'*

Further, this Court in judgment invariably held that:-

*'It will be seen that the terms of Vakalatnama amply demonstrate that the counsel was empowered to take any step and conduct proceedings in the suit as considered proper by him, and that the same were acceptable to the respondents, who put their signatures on the Deed in token of their approval.'*

A party is always bound by the statement of his counsel unless there is anything contrary in the power of attorney placing restriction(s) on the authority, delegated upon the counsel, to compromise or abandon the claim on behalf of his client(s). In Hassan Akhtar case, this Court has held:-

*'13. It is by now well-settled that an Advocate has authority to make statement on behalf of his client, which is binding upon the client, unless there is any thing contrary in the Vakalatnama putting restriction on the authority of the Advocate to compromise or abandon claim on behalf of the client. The Advocate's power in the conduct of a suit allows him to abandon the issue, which in his discretion, advisable in the general interest of his client.'*

In this view of the matter, the principle of estoppel fully attracts against the petitioner. Even otherwise, the appellate Court, after passing of the decree by the trial Court, reviewed its findings and concurred the same being in accordance with pleadings, evidence and law on the subject.”

After having an overview of the principles laid down in the above noted judgments, I feel no hesitation to observe that where through the power of attorney an authority has been conferred upon the counsel by his client to record statement

on his behalf even concessional, the latter then becomes bound to honour such statement and he cannot wriggle out of the same on flimsy grounds.

11. Before parting, I feel no hesitation to observe that in the recent past, a tendency has developed amongst the litigants; they appoint counsel of their choice while bestowing authority to act on their behalf before the Court, however, in case of settlement of issues on basis of bilateral compromise between the parties and recording of statement of their counsel in furtherance thereof before the Court, they tend to resile from the statement with plea that it is neither valid nor binding upon them. This practice amounts to play havoc with the process of law. Needless to observe that this trend cannot be appreciated at all and if it is allowed to flourish it will completely diminish the confidence and trust attached to the fiduciary relationship *inter se* counsel and client on the one hand and on the other, it will erode the sanctity attached to the judicial proceedings. Presumption of truth is attached to the judicial proceedings in terms of Article 129(e) of the Qanun-e-Shahadat Order, 1984, which cannot be altered or swayed away at the whims of any of the parties.

12. The nutshell of above discussion is that applicant is bound by the statement recorded by his duly appointed counsel and he cannot take a summersault now. As a consequence, this application, being devoid of any merits, is **dismissed** with no order as to costs.

**C.M. No.1970 of 2023**

13. In view of order of even date passed in C.M. No.1969 of 2023, this application has become infructuous.

14. **Dismissed as such.**

**(MIRZA VIQAS RAUF)**  
**JUDGE**

**APPROVED FOR REPORTING**

**JUDGE**